COLLEN CHIMBETU
versus
ANGELINE JAMBWA
and
TARISAI CHIURUGWI
and
THE SHERIFF OF ZIMBABWE

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 11 March and 14 July 2026

Urgent Chamber Application

F Chinwawadzimba with A Sibanda, for the applicant
B Kashangura, for the 1st respondent
A Phiri, for 2nd respondent

TAKUVA J: This is an urgent chamber application in which the applicant seeks an order staying execution of a writ of ejectment issued pursuant to a judgment granted under case number HCH 4396/05 pending the determination of an application to set aside the writ of ejectment. The application is opposed.

BACKGROUND FACTS

The background to this matter is largely common cause. The first and second respondents obtained a default judgment under case number HCH 4396/05 on 11 September 2006. The judgment ordered the eviction of Allan Chimbetu and all persons claiming occupation through him from Doddington Farm, Chegutu. Pursuant to that judgment, a writ of ejectment was subsequently issued.

The applicant was not cited as a party in those proceedings. His case is that he has occupied Subdivision 8 of Doddington Farm since March 2007 pursuant to authority granted by the Ministry responsible for Lands. He contends that he has established farming operations on the property and currently has approximately fifty hectares of maize under cultivation which is approaching maturity.

According to the applicant, he only became aware on 27 February 2026, that the respondents intended to execute the writ of ejectment in circumstances which he believed

would affect his occupation of the land. Upon becoming aware of the impending execution, he sought legal advice and instituted these proceedings on an urgent basis.

The applicant maintains that the writ of ejectment is unclear regarding the specific portion of Doddington Farm to which it relates and that its execution would unlawfully affect him despite the fact that he was never cited in the proceedings culminating in the order of 11 September 2006. He has consequently filed an application seeking to challenge the writ of ejectment and now seeks interim relief in the form of a stay of execution pending the determination of that application.

The respondents oppose the application. Their position is that the applicant lacks *locus standi* as he was not a party to the original proceedings. They further contend that the applicant derives whatever rights he claims through Allan Chimbetu, against whom the original order was granted, and is therefore bound by that judgment. The respondents also dispute the urgency of the matter and maintain that the applicant has known of the existence of the eviction order for many years.

It is against this factual background that this court is called upon to determine the preliminary points raised by the respondents and, if necessary, the merits of the application for a stay of execution.

PRELIMINARY POINTS

The respondents raised three preliminary objections, namely lack of urgency, incompetence of the relief sought, and lack of *locus standi.*

Urgency

The respondents contend that the matter is not urgent because the eviction order was granted in 2006 and the applicant allegedly knew of the proceedings for many years.

The principles governing urgency are now settled. In *Kuvarega* v *Registrar General & Anor* 1998 (1) ZLR 188 (H), CHATIKOBO J held that urgency is not determined merely by the imminence of the threatened harm but by whether, at the time the need to act arose, the applicant acted promptly and treated the matter as urgent. The learned judge stated that a matter is urgent where, if the court does not intervene immediately, irreparable prejudice will occur before the matter can be heard in the ordinary course.

The applicant's case is that he only became aware on 27 February 2026 that the writ of ejectment was about to be executed against premises which he occupies and upon which he conducts farming activities. Within a few days of acquiring such knowledge, he sought legal advice and instituted the present proceedings. There is nothing before the court

demonstrating dilatoriness on the applicant's part after becoming aware of the threatened execution.

The respondents allege that the applicant has known about the judgment since 2006. However, that allegation is not supported by evidence sufficient to establish that the applicant acquiesced in the execution process or sat on his rights. What is common cause is that the applicant was not cited in the original proceedings and that execution is now imminent.

The threatened execution creates a present and immediate danger. The applicant alleges that approximately fifty hectares of maize are nearing maturity and that execution at this stage will result in substantial disruption of his farming operations and possible contractual liability. Such prejudice cannot readily be remedied by a subsequent award of damages.

More importantly, if execution proceeds before the applicant's challenge to the writ is determined, that challenge may be rendered academic. Courts have consistently frowned upon situations where the subject matter of litigation is destroyed before the dispute is determined. The purpose of interim relief is precisely to prevent such an occurrence.

In the circumstances, the urgency arises not from the existence of the 2006 judgment but from the imminent execution of the writ and the consequent risk of irreparable prejudice. I am therefore satisfied that the applicant has met the requirements for urgency as enunciated in *Kuvarega* v *Registrar General & Anor* (*supra*).

Incompetence of the Relief Sought

The respondents raised a point *in limine* contending that the relief sought by the applicant is incompetent and incapable of being granted through the present proceedings. It was argued that the application seeks substantive relief which falls outside the scope of an urgent chamber application and should therefore be dismissed.

At the outset, it is necessary to observe that during the hearing the applicant sought leave to amend the draft order in order to clarify the nature of the relief sought. The amendment did not alter the cause of action, introduce new facts, or seek relief fundamentally different from that contained in the founding papers. Rather, it clarified that the relief sought was directed at preserving the status *quo* pending the determination of proceedings challenging the writ of ejectment.

The law relating to amendments is well settled. Courts generally lean in favour of allowing amendments where such amendments facilitate the proper ventilation of the real issues in dispute and do not occasion prejudice to the opposing party that cannot be cured by

an appropriate order for costs. In *UDC Ltd* v *Shamva Flora (Pvt) Ltd* 2000 (2) ZLR 210 (H), the court reaffirmed that amendments should ordinarily be allowed where they are sought *bona fide* and serve to ensure that disputes are determined on their true merits. Similarly, in *Trans-Drakensberg Bank Ltd (Under Judicial Management)* v *Combined Engineering (Pty) Ltd* 1967 (3) SA 632 (D), the court emphasized that the purpose of permitting amendments is to enable the real issues between the parties to be properly adjudicated upon, provided that no irremediable prejudice is suffered by the opposing party.

In the present matter, the respondents did not oppose the amendment on the basis that it introduced a new cause of action, nor did they demonstrate any prejudice arising therefrom. The amendment merely clarified the formulation of the relief sought. It follows that once the amendment was allowed, the court was obliged to consider the application on the basis of the amended relief rather than the relief as originally framed.

The respondents' objection consequently loses much of its force. A point *in limine* founded upon the wording of relief that has subsequently been amended cannot survive where the amendment cures the alleged defect. The issue before the court therefore becomes whether the amended relief is competent in law.

The amended relief seeks, in essence, a stay of execution pending the determination of proceedings challenging the validity of the writ of ejectment. Such relief is interlocutory and preservatory in nature. It does not finally determine the rights of the parties. Rather, it seeks to maintain the prevailing position until the substantive dispute has been resolved by a competent court.

It is a settled principle that superior courts possess an inherent power to regulate their own process and to grant interim relief where necessary to prevent injustice or to preserve the subject matter of litigation pending the final determination of the parties' rights. Where a litigant has instituted proceedings challenging the basis upon which execution is sought, a court may, in an appropriate case, stay execution pending the determination of those proceedings if the interests of justice so require.

In casu, the applicant has already instituted proceedings aimed at setting aside or challenging the writ of ejectment. The relief presently sought is ancillary to those proceedings and is designed to preserve the efficacy of any order that may ultimately be granted therein. If execution were to proceed before the challenge to the writ is determined, the applicant may suffer consequences that could render the pending proceedings academic. The relief therefore serves a legitimate procedural purpose.

Accordingly, the court does not agree with the respondents that the relief sought is incompetent. The amendment having cured any perceived defect in the formulation of the draft order, and the relief being interlocutory and preservatory in nature, there exists no basis for holding that the application is fatally defective.

Lack of *Locus Standi*

The Respondents contend that the Applicant lacks *locus standi* because he was not a party to the proceedings under case number HC 4396/05. This argument is misconceived.

The test for *locus standi* is whether a litigant has a direct and substantial interest in the subject matter of the proceedings. In *Zimbabwe Stock Exchange* v *Zimbabwe Revenue Authority* SC 56/07 and *Stevenson* v *Minister of Local Government and National Housing & Others* SC 38/02, it was held that a party has *locus standi* where he demonstrates a real and substantial interest in the relief sought.

The Applicant alleges that he has occupied Subdivision 8 of Doddington Farm since 2007 under authority granted by the Ministry responsible for Lands and that he has substantial farming operations on the property. The execution of the writ of ejectment will directly affect his occupation and interests. He therefore has a direct and substantial interest in these proceedings.

The fact that the Applicant was not cited in HC 4396/05 does not deprive him of l*ocus standi.* On the contrary, his complaint is that the Respondents seek to execute a writ against a person who was never joined to the original proceedings. Whether the Applicant occupies the land through Allan Chimbetu or independently thereof is a disputed issue which falls to be determined on the merits and not as a preliminary point.

Accordingly, the Applicant has established the requisite *locus standi* and the point *in limine* ought to be dismissed.

THE MERITS

The issue for determination is whether the applicant has established a proper basis for the grant of a stay of execution pending determination of his application to set aside the writ of ejectment.

The principles governing a stay of execution are well established. A court possesses inherent jurisdiction to regulate its own process and to prevent injustice arising from the execution of its orders. In *South Cape Corporation (Pty) Ltd* v *Engineering Management Services (Pty) Ltd* 1977 (3) SA 534 (A), the court observed that the power to stay execution

exists to prevent injustice and hardship in circumstances where execution would result in inequity.

Similarly, in *Mafusire & Ors* v *Gweru City Council* HH-106-04, the court emphasized that the overriding consideration in applications for a stay of execution is whether real and substantial justice requires the suspension of the execution process.

It is common cause that the applicant was not cited in the proceedings which culminated in the judgment under case number HCH 4396/05. It is further common cause that he has occupied the property for a considerable period. The respondents themselves acknowledge that the applicant has been on the land since 2007.

The respondents maintain that the applicant derives his occupation through Allan Chimbetu and is therefore bound by the judgment. At the same time, however, they acknowledge that the applicant obtained documentation from the Ministry in his own name and has occupied the land pursuant thereto. That dispute lies at the heart of the applicant's challenge to the writ and cannot be conclusively determined in the present proceedings.

The applicant's complaint is not directed at the judgment itself but at the attempt to execute a writ whose scope is disputed and whose application to his occupation remains contested. The court is not presently called upon to determine the validity of the applicant's rights to the land. That issue falls for determination in the application seeking to set aside the writ of ejectment.

The relevant enquiry is whether execution should be permitted to proceed before that challenge is heard.

In my view, permitting execution in the circumstances would create a real risk of irreparable prejudice. The applicant has placed before the court evidence that substantial farming activities are being conducted on the property and that crops are approaching maturity. If execution proceeds and the applicant is removed from the land, the practical consequences cannot easily be reversed. Any subsequent success in the challenge to the writ may prove hollow.

The Supreme Court in *Eriksen Motors (Welkom) Ltd* v *Protea Motors Warrenton & Another* 1973 (3) SA 685 (A) recognized that courts granting interim relief are primarily concerned with preventing irreparable harm pending determination of the parties' substantive rights. That principle is particularly applicable in the present matter.

Furthermore, there exists a genuine dispute regarding the extent to which the writ applies to the applicant. It would be inimical to the interests of justice to permit execution to proceed before that dispute has been judicially resolved.

On the other hand, a temporary stay pending determination of the challenge causes comparatively less prejudice to the respondents. Their rights under the judgment are preserved and merely await judicial clarification regarding the applicability of the writ to the applicant. The respondents have already waited a considerable period before seeking execution. A temporary suspension pending determination of the pending challenge will not extinguish their rights.

CONCLUSION

The balance of convenience therefore overwhelmingly favours preservation of the status *quo*. The interests of justice demand that the court ensures that the applicant's challenge to the writ is heard and determined before irreversible steps are taken.

I am accordingly satisfied that the applicant has established a proper basis for the grant of a stay of execution pending determination of his application to set aside the writ of ejectment.

DISPOSITION

Accordingly, it is ordered that:

1. The preliminary points raised by the respondents be and are hereby dismissed.
2. The execution of the writ of ejectment issued pursuant to case number HCH 4396/05 be and is hereby stayed pending the final determination of the applicant's application for the setting aside of the writ of ejectment.
3. The third respondent shall take no further steps in execution of the said writ pending the determination referred to in paragraph 2 above.
4. The first and second respondents shall pay costs of suit jointly and severally, the one paying the other to be absolved.

TAKUVA J: ……

Wellington Attorneys, applicant's legal practitioners
Mabundu Attorneys, first respondent's legal practitioners